



Haverhill

Economic Development and Planning
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To: City Council

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HAVCITYCLERK

From: Jacki Byerley, AICP, Planning Director

Re: CCSP-26-5 – 16 Margin Street

Date: August 6, 2026

An application has been received pursuant to the Zoning Ordinance Section 10.4 Special Permits to construct a three-unit condominium project at 16 Margin Street within the RU Zoning District, the applicant is Bevi Builders II, LLC. A three family is allowed by Special Permit in the RU zoning district and requires 11,700 square feet of land, 80 feet of frontage and 2 parking spaces for 3-bedroom units; the applicant's proposal has 13,500 square feet and 100 feet of frontage and 2 spaces per unit for parking.

The applicant has provided a write-up on how the project meets the special permit criteria. Departments have also provided comments regarding the proposal.

It is recommended that the City Council approve the requested Special Permit, subject to the suggested conditions, standard special permit conditions and recommendations made by the departments.

Suggested conditions:

1. The Applicant, property owner, and their successors or assigns (collectively, the "Applicant") shall construct the project substantially in accordance with the plans, architectural renderings and elevations submitted with the Special Permit application, which are incorporated herein by reference. If the Applicant determines that any modification to the approved plans is necessary, the Applicant shall submit the proposed modification in writing to the Building Commissioner and obtain the required approval prior to implementing the modification.

The Building Commissioner shall make a determination of whether a proposed modification is minor or major. Minor changes may be approved in writing by the Building Commissioner in consultation with the Planning Director and Director of Inspectional Services. Any modification determined by the Building Commissioner to be major shall require review and approval by the City Council following a public hearing.

1. Curb Cuts: Any new driveway opening or curb cuts that have egress to the public right of way must be approved by the City Engineer or Designee in advance of construction.

2. Fire Department and Utility Compliance: The Applicant shall be responsible for designing the utility's to meet City standards and ensuring compliance with the fire codes prior to commencing work under this permit.
3. Submission of As Built Foundation Plan: A copy of the as-built foundation plan shall be provided to the Building Department upon foundation completion.
4. Site Lighting: All lighting fixtures, including but not limited to, signage, building, parking lot, site decorative, and security shall feature cut off fixtures so that the lights are pointed downward reducing light pollution and glare onto abutting properties.
5. Hours of Construction: The Applicant shall take reasonable care not to disturb surrounding properties and property owners during construction. Construction work shall be limited to the hours of 7:00 am to 7:00 pm Monday – Saturday.
6. Submission of As-Built Site Plans: A copy of the as built site plans stamped by a professional engineer shall be submitted to the Office of Planning and Development at the completion of construction.
7. Prior to the sale or conveyance of any unit, the applicant shall establish a condominium association. The condominium documents shall provide for the ownership, maintenance, repair, replacement, and management of all common areas, parking areas, driveways, landscaping, utilities, stormwater facilities, and other shared improvements. The condominium documents shall also establish an adequate reserve fund for the long-term maintenance and replacement of common facilities, to be reviewed by the City Solicitor and departments prior to recording at the Registry of Deeds.
8. A landscaping plan shall be reviewed by the Planning Director prior to planting and must be planted prior to occupancy or at the next planting season. The association shall maintain the landscaping throughout the life of the project, should any of the landscaping die it shall be replaced during the next available planting season.
9. A Development Review meeting for review of the plans for compliance with City regulations and applicable state laws shall take place prior to start of construction.